

1 AN ACT relating to school transportation and declaring an emergency.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔Section 1. KRS 156.153 is amended to read as follows:

4 (1) (a) All school buses for which bids are made or bid contracts awarded shall meet
5 the standards and specifications of the Kentucky Department of Education.
6 The term "school bus," as used in this section, shall mean any motor vehicle
7 which meets the standards and specifications for school buses as provided by
8 law or by the standards or specifications of the Kentucky Department of
9 Education authorized by law and used solely in transporting school children
10 and school employees to and from school under the supervision and control
11 and at the direction of school authorities, and shall further include school bus
12 accessory equipment and supplies and replacement equipment considered to
13 be reasonably adaptable for purchase from price contract agreements.

14 (b) The standards and specifications for accessory equipment and supplies and
15 replacement equipment under paragraph (a) of this subsection shall be based
16 on federal safety standards and shall not discriminate among manufacturers
17 unless the Kentucky Department of Education finds evidence that a specific
18 manufacturer's product is defective or dangerous to use.†

19 ~~(c) The Kentucky Department of Education shall provide the list of standards and~~
20 ~~specifications for accessory equipment and supplies and replacement~~
21 ~~equipment to the Finance and Administration Cabinet for the purposes of~~
22 ~~maintaining the price contract list required under KRS 45A.489.]~~

23 (2) School buses shall be clearly marked as transporting students and shall undergo a
24 safety inspection no less than once every thirty (30) days.

25 (3) (a) Districts may also use vehicles owned, leased, or contracted by the district
26 that were designed and built by the manufacturer for passenger transportation
27 of ten (10)~~nine (9)]~~ or fewer passengers, including the driver, for transporting

1 students to and from school along regular bus routes and approved school
2 activities~~[under an alternative transportation plan approved by the Kentucky~~
3 ~~Department of Education]~~.

4 (b) Non-school bus passenger vehicles used under this subsection shall be clearly
5 marked as transporting students and undergo a safety inspection no less than
6 once every thirty (30) days. However, non-school bus passenger vehicles that
7 are not for daily use shall not be required to be inspected more frequently than
8 once every three (3) months.

9 (c) Non-school bus passenger vehicles used under this subsection shall be
10 operated by an employee or contractor of a local school district that has a
11 valid Class D operator's license. An individual that operates a non-school bus
12 passenger vehicle to transport a student or students without a current valid
13 license required by this paragraph shall be subject to the penalties set forth in
14 KRS 156.990(4).

15 (d) The Kentucky Board of Education shall promulgate administrative regulations
16 in accordance with KRS Chapter 13A to establish:

17 1. Minimum standards and specifications for non-school bus passenger
18 vehicles used under this subsection, including a standard for minimum
19 insurance coverage;

20 2. Minimum route safety standards and pick-up and drop-off protocols for
21 transporting students to and from school along a regular bus
22 route~~[pupil transportation]~~ using non-school bus passenger vehicles that
23 prohibit non-school bus passenger vehicles from depositing a student at
24 a location that would require the student to cross a road or intersection
25 to reach the student's destination;~~[and]~~

26 3. a. Minimum qualifications, training, and drug testing requirements
27 for an individual to be authorized to transport any student~~[to and~~

1 ~~from school~~] using a non-school bus passenger vehicle owned,
2 leased, or contracted by a school district.

3 **b. The minimum requirements for an individual authorized to**
4 **transport students to and from approved school activities shall:**

5 **i. Require an individual to possess a valid driver's license and**
6 **identify any moving violations that would disqualify an**
7 **individual from being authorized to transport any student**
8 **in a non-school bus passenger vehicle;**

9 **ii. Include an initial three (3) hour training and a basic first**
10 **aid and cardiopulmonary resuscitation training; and**

11 **iii. Include**~~[- The]~~ drug testing requirements **that** shall require
12 an individual to submit to drug testing consistent, **to the**
13 **greatest extent practicable,** with the requirements of 49
14 C.F.R. pt. 40~~[- to be authorized to transport students to and~~
15 ~~from school using a non-school bus passenger vehicle].~~

16 **c. The minimum requirements for an individual transporting**
17 **students along a regular bus route:**

18 **i. Shall include the requirements for an individual authorized**
19 **to transport students to and from approved school**
20 **activities; and**

21 **ii. May include additional requirements deemed necessary.**

22 **d. A local board of education may establish additional**
23 **qualifications, training, and drug testing requirements for an**
24 **individual to be authorized to transport any student in a non-**
25 **school bus passenger vehicle.**

26 **(e) The transportation of a student pursuant to an agreement between a school**
27 **district and a parent to reimburse the parent for arranging transportation of**

1 *his or her own child to and from school or approved school activities shall*
2 *not be subject to any requirement imposed pursuant to this section.*

3 (4) As part of its regular procedure for establishing and updating standards and
4 specifications for school buses and non-school bus passenger vehicles, the
5 Kentucky Department of Education shall consider allowing school buses to operate
6 using clean transportation fuels, as defined in KRS 186.750. If the department
7 determines that school buses or non-school bus passenger vehicles may operate
8 using clean transportation fuels while maintaining the same or a higher degree of
9 safety as fuels currently allowed, it shall update its standards and specifications to
10 allow for such use.

11 ➔Section 2. KRS 160.380 is amended to read as follows:

12 (1) As used in this section:

13 (a) "Administrative finding of child abuse or neglect" means a substantiated
14 finding of child abuse or neglect issued by the Cabinet for Health and Family
15 Services that is:

- 16 1. Not appealed through an administrative hearing conducted in
17 accordance with KRS Chapter 13B;
18 2. Upheld at an administrative hearing conducted in accordance with KRS
19 Chapter 13B and not appealed to a Circuit Court; or
20 3. Upheld by a Circuit Court in an appeal of the results of an
21 administrative hearing conducted in accordance with KRS Chapter 13B;

22 (b) "Alternative education program" means a program that exists to meet the
23 needs of students that cannot be addressed in a traditional classroom setting
24 but through the assignment of students to alternative classrooms, centers, or
25 campuses that are designed to remediate academic performance, improve
26 behavior, or provide an enhanced learning experience. Alternative education
27 programs do not include career or technical centers or departments;

- 1 (c) "Clear CA/N check" means a letter from the Cabinet for Health and Family
2 Services indicating that there are no administrative findings of child abuse or
3 neglect relating to a specific individual;
- 4 (d) "Relative" means father, mother, brother, sister, husband, wife, son and
5 daughter; and
- 6 (e) "Vacancy" means any certified position opening created by the resignation,
7 dismissal, nonrenewal of contract, transfer, or death of a certified staff
8 member of a local school district, or a new position created in a local school
9 district for which certification is required. However, if an employer-employee
10 bargained contract contains procedures for filling certified position openings
11 created by the resignation, dismissal, nonrenewal of contract, transfer, or
12 death of a certified staff member, or creation of a new position for which
13 certification is required, a vacancy shall not exist, unless certified positions
14 remain open after compliance with those procedures.
- 15 (2) Except as provided in KRS 160.346, the school district personnel actions identified
16 in this section shall be carried out as follows:
- 17 (a) All appointments, promotions, and transfers of principals, supervisors,
18 teachers, and other public school employees shall be made only by the
19 superintendent of schools, who shall notify the board of the action taken. All
20 employees of the local district shall have the qualifications prescribed by law
21 and by the administrative regulations of the Kentucky Board of Education and
22 of the employing board. Supervisors, principals, teachers, and other
23 employees may be appointed by the superintendent for any school year at any
24 time after February 1 preceding the beginning of the school year. No
25 superintendent of schools shall appoint or transfer himself or herself to
26 another position within the school district;
- 27 (b) When a vacancy occurs in a local school district, the superintendent shall

1 submit the job posting to the statewide job posting system described in KRS
2 160.152 fifteen (15) days before the position shall be filled. The local school
3 district shall post position openings in the local board office for public
4 viewing;

5 (c) When a vacancy needs to be filled in less than fifteen (15) days' time to
6 prevent disruption of necessary instructional or support services of the school
7 district, the superintendent may seek a waiver from the chief state school
8 officer outside of the process established in KRS 156.161. If the waiver is
9 approved, the appointment shall not be made until the person recommended
10 for the position has been approved by the chief state school officer. The chief
11 state school officer shall respond to a district's request for waiver or for
12 approval of an appointment within two (2) working days; and

13 (d) When a vacancy occurs in a local district, the superintendent shall conduct a
14 search to locate minority teachers to be considered for the position. The
15 superintendent shall, pursuant to administrative regulations of the Kentucky
16 Board of Education, report annually the district's recruitment process and the
17 activities used to increase the percentage of minority teachers in the district.

18 (3) Restrictions on employment of relatives shall be as follows:

19 (a) No relative of a superintendent of schools shall be an employee of the school
20 district. However, this shall not apply to a relative who is a classified or
21 certified employee of the school district for at least thirty-six (36) months
22 prior to the superintendent assuming office and who is qualified for the
23 position the employee holds. A superintendent's spouse who has previously
24 been employed in a school system may be an employee of the school district.
25 A superintendent's spouse who is employed under this provision shall not hold
26 a position in which the spouse supervises certified or classified employees. A
27 superintendent's spouse may supervise teacher aides and student teachers.

- 1 However, the superintendent shall not promote a relative who continues
2 employment under an exception of this subsection;
- 3 (b) No superintendent shall employ a relative of a school board member of the
4 district;
- 5 (c) No principal's relative shall be employed in the principal's school; and
- 6 (d) A relative that is ineligible for employment under paragraph (a), (b), or (c) of
7 this subsection may be employed as a substitute for a certified or classified
8 employee if the relative is not:
- 9 1. A regular full-time or part-time employee of the district;
- 10 2. Accruing continuing contract status or any other right to continuous
11 employment;
- 12 3. Receiving fringe benefits other than those provided other substitutes; or
- 13 4. Receiving preference in employment or assignment over other
14 substitutes.
- 15 (4) No superintendent shall assign a certified or classified staff person to an alternative
16 education program as part of any disciplinary action taken pursuant to KRS 161.011
17 or 161.790 as part of a corrective action plan established pursuant to the local
18 district evaluation plan.
- 19 (5) No superintendent shall employ in any position in the district any person who:
- 20 (a) Has been convicted of an offense that would classify a person as a violent
21 offender under KRS 439.3401;
- 22 (b) Has been convicted of a sex crime as defined by KRS 17.500 or a
23 misdemeanor offense under KRS Chapter 510;
- 24 (c) Is required to register as a sex offender under KRS 17.500 to 17.580; or
- 25 (d) Has an administrative finding of child abuse or neglect in records maintained
26 by the Cabinet for Health and Family Services.
- 27 (6) Requirements for background checks shall be as follows:

- 1 (a) A superintendent shall require the following individuals to submit to a
2 national and state criminal background check by the Department of Kentucky
3 State Police and the Federal Bureau of Investigation and have a clear CA/N
4 check, provided by the individual:
- 5 1. Each new certified or classified hire;
 - 6 2. A nonfaculty coach or nonfaculty assistant as defined under KRS
7 161.185;
 - 8 3. A student teacher;
 - 9 4. A school-based decision making council parent member; and
 - 10 5. Any adult who is permitted access to school grounds on a regularly
11 scheduled and continuing basis pursuant to a written agreement for the
12 purpose of providing services directly to a student or students as part of
13 a school-sponsored program or activity;
- 14 (b) 1. The requirements of paragraph (a) of this subsection shall not apply to:
- 15 a. Classified and certified individuals employed by the school district
16 prior to June 27, 2019;
 - 17 b. Certified individuals who were employed in another certified
18 position in a Kentucky school district within six (6) months of the
19 date of hire and who had previously submitted to a national and
20 state criminal background check and who have a clear CA/N check
21 for the previous employment; or
 - 22 c. Student teachers who have submitted to and provide a copy of a
23 national and state criminal background check by the Department
24 of Kentucky State Police and the Federal Bureau of Investigation
25 through an accredited teacher education institution in which the
26 student teacher is enrolled and who have a clear CA/N check.
- 27 2. The Education Professional Standards Board may promulgate

1 administrative regulations to impose additional qualifications to meet
2 the requirements of Pub. L. No. 92-544;

3 (c) A parent member may serve prior to the receipt of the criminal history
4 background check and CA/N letter required by paragraph (a) of this
5 subsection but shall be removed from the council on receipt by the school
6 district of a report documenting a record of abuse or neglect, or a sex crime or
7 criminal offense against a victim who is a minor as defined in KRS 17.500, or
8 as a violent offender as defined in KRS 17.165, and no further procedures
9 shall be required;

10 (d) A superintendent may require a volunteer or a visitor to submit to a national
11 and state criminal history background check by the Department of Kentucky
12 State Police and the Federal Bureau of Investigation and have a clear CA/N
13 check, provided by the individual; and

14 (e) The superintendent~~[of a school district operating under an alternative~~
15 ~~transportation plan approved by the Kentucky Department of Education in~~
16 ~~accordance with KRS 156.153(3)]~~ shall require any~~[the]~~ driver of any non-
17 school bus passenger vehicle authorized to transport students to and from
18 school along a regular bus route~~[pursuant to the alternative transportation~~
19 ~~plan]~~ who does not have a valid commercial driver's license issued in
20 accordance with KRS Chapter 281A with an "S" endorsement to:

- 21 1. Submit to a national and state criminal background check by the
22 Department of Kentucky State Police and the Federal Bureau of
23 Investigation at least once every three (3) years and a criminal records
24 check conducted in accordance with KRS 27A.090 in all other years;
- 25 2. Submit to drug testing consistent with the administrative regulations
26 promulgated in accordance with Section 1 of this Act~~[requirements of~~
27 ~~49 C.F.R. pt. 40];~~

- 1 3. Provide a copy of a valid driver's license and a biannual driving history
- 2 record check performed by the Transportation Cabinet that does not
- 3 include a disqualifying moving violation;
- 4 4. Provide an annual clear CA/N check;
- 5 5. Immediately notify the superintendent of any conviction for a violation
- 6 under KRS Chapter 189 for which penalty points are assessed; and
- 7 6. Immediately notify the superintendent of any citation or arrest for a
- 8 violation of any provision of KRS Chapter 189A. The superintendent
- 9 shall inform the Kentucky Department of Education of the notification.

10 (f) The superintendent shall require any driver of any non-school bus

11 passenger vehicle authorized to transport students to and from approved

12 school activities who does not have a valid commercial driver's license with

13 an "S" endorsement issued in accordance with KRS Chapter 281A to:

- 14 1. Submit to a state criminal records check from the Justice and Public
- 15 Safety Cabinet or the Administrative Office of the Courts, or both, in
- 16 accordance with KRS 17.160(1) prior to being authorized and
- 17 annually thereafter;
- 18 2. Submit to drug testing consistent with the administrative regulations
- 19 promulgated in accordance with Section 1 of this Act;
- 20 3. Provide a copy of a valid driver's license and a driving history record
- 21 check performed by the Transportation Cabinet that does not include
- 22 a disqualifying moving violation prior to being authorized and in
- 23 accordance with school district policy thereafter;
- 24 4. Immediately notify the superintendent of any conviction for a violation
- 25 under KRS Chapter 189 for which penalty points are assessed; and
- 26 5. Immediately notify the superintendent of any citation or arrest for a
- 27 violation of any provision of KRS Chapter 189A. The superintendent

1 shall inform the Kentucky Department of Education of the
2 notification.

3 (7) (a) If a certified or classified position remains unfilled after July 31 or if a
4 vacancy occurs during a school term, a superintendent may employ an
5 individual, who will have supervisory or disciplinary authority over minors,
6 on probationary status pending receipt of the criminal history background
7 check and a clear CA/N check, provided by the individual. Application for the
8 criminal record and a request for a clear CA/N check of a probationary
9 employee shall be made no later than the date probationary employment
10 begins.

11 (b) Employment shall be contingent on the receipt of the criminal history
12 background check documenting that the probationary employee has no record
13 of a sex crime nor as a violent offender as defined in KRS 17.165 and receipt
14 of a letter, provided by the individual, from the Cabinet for Health and Family
15 Services stating the employee is clear to hire based on no administrative
16 findings of child abuse or neglect found through a background check of child
17 abuse and neglect records maintained by the Cabinet for Health and Family
18 Services.

19 (c) Notwithstanding KRS 161.720 to 161.800 or any other statute to the contrary,
20 probationary employment under this section shall terminate on receipt by the
21 school district of a criminal history background check documenting a record
22 of a sex crime or as a violent offender as defined in KRS 17.165 and no
23 further procedures shall be required.

24 (8) The provisions of KRS 161.790 shall apply to terminate employment of a certified
25 employee on the basis of a criminal record other than a record of a sex crime or as a
26 violent offender as defined in KRS 17.165, or on the basis of a CA/N check
27 showing an administrative finding of child abuse or neglect.

- 1 (9) (a) All fingerprints requested under this section shall be on an applicant
2 fingerprint card provided by the Department of Kentucky State Police. The
3 fingerprint cards shall be forwarded to the Federal Bureau of Investigation
4 from the Department of Kentucky State Police after a state criminal
5 background check is conducted. The results of the state and federal criminal
6 background check shall be sent to the hiring superintendent. Any fee charged
7 by the Department of Kentucky State Police, the Federal Bureau of
8 Investigation, and the Cabinet for Health and Family Services shall be an
9 amount no greater than the actual cost of processing the request and
10 conducting the search.
- 11 (b) Each application form, provided by the employer to an applicant for a
12 certified or classified position, shall conspicuously state the following: "FOR
13 THIS TYPE OF EMPLOYMENT, STATE LAW REQUIRES A NATIONAL
14 AND STATE CRIMINAL HISTORY BACKGROUND CHECK AND A
15 LETTER, PROVIDED BY THE INDIVIDUAL, FROM THE CABINET
16 FOR HEALTH AND FAMILY SERVICES STATING THE APPLICANT
17 HAS NO ADMINISTRATIVE FINDINGS OF CHILD ABUSE OR
18 NEGLECT FOUND THROUGH A BACKGROUND CHECK OF CHILD
19 ABUSE AND NEGLECT RECORDS MAINTAINED BY THE CABINET
20 FOR HEALTH AND FAMILY SERVICES."
- 21 (c) Each application form for a district position shall require the applicant to:
- 22 1. Identify the states in which he or she has maintained residency,
23 including the dates of residency; and
- 24 2. Provide picture identification.
- 25 (10) Notwithstanding any provision of the Kentucky Revised Statutes to the contrary,
26 when an employee of the school district is charged with any offense which is
27 classified as a felony, the superintendent may transfer the employee to a second

1 position until such time as the employee is found not guilty, the charges are
2 dismissed, the employee is terminated, or the superintendent determines that further
3 personnel action is not required. The employee shall continue to be paid at the same
4 rate of pay he or she received prior to the transfer. If an employee is charged with
5 an offense outside of the Commonwealth, this provision may also be applied if the
6 charge would have been treated as a felony if committed within the
7 Commonwealth. Transfers shall be made to prevent disruption of the educational
8 process and district operations and in the interest of students and staff and shall not
9 be construed as evidence of misconduct.

10 (11) Notwithstanding any law to the contrary, each certified and classified employee of
11 the school district shall notify the superintendent if he or she has been found by the
12 Cabinet for Health and Family Services to have abused or neglected a child, and if
13 he or she has waived the right to appeal a substantiated finding of child abuse or
14 neglect or if the substantiated incident was upheld upon appeal. Any failure to
15 report this finding shall result in the certified or classified employee being subject
16 to dismissal or termination.

17 (12) The form for requesting a CA/N check shall be made available on the Cabinet for
18 Health and Family Services website.

19 ➔Section 3. There being a desperate need for individuals to transport students to
20 and from approved school activities, an emergency is declared to exist, and this Act takes
21 effect upon its passage and approval by the Governor or upon its otherwise becoming a
22 law.